

■ NOTICE OF POTENTIAL BREACH ■

The parties note that certain information disclosed under this Agreement may have been shared with unauthorized third parties. Both parties agree to conduct an internal investigation and report findings within fifteen (15) business days. This Agreement remains in full force pending resolution.

MUTUAL NON-DISCLOSURE AGREEMENT

(Confidential — For Authorized Parties Only)

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of October 17, 2024 ("Effective Date"), by and between:

DISCLOSING PARTY A	DISCLOSING PARTY B
Colossus Infrastructure Inc.	Nexus Genomics LLC
1100 Build Blvd, Dallas, TX 75201	1200 Genome Ct, Cambridge, MA 02142
a Texas corporation	a Massachusetts LLC

1. PURPOSE

The Parties wish to explore a potential business relationship involving investigating a proposed merger of equals in the enterprise cloud storage market (the "Purpose"). In connection with the Purpose, each Party may disclose certain confidential and proprietary information. The Parties desire to protect such information from unauthorized use and disclosure.

2. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all information that has or could have commercial value, including trade secrets, technical data, financial information, business strategies, customer lists, pricing data, and any information designated confidential by the disclosing Party. Exceptions apply for information that becomes publicly known without breach, was already rightfully possessed, or is independently developed without reference to the disclosing Party's Confidential Information.

3. OBLIGATIONS OF RECEIVING PARTY

Each receiving Party agrees to: (a) hold Confidential Information in strict confidence; (b) not disclose to unauthorized third parties; (c) use solely for the Purpose; and (d) limit access to personnel with a need to know. **NOTE: A potential breach of obligation (b) is currently under investigation as noted in the header of this document.**

4. TERM AND TERMINATION

This Agreement commences on the Effective Date and continues for three (3) years unless earlier terminated by either Party upon thirty (30) days' written notice. Confidentiality obligations survive for five (5) years post-disclosure.

5. RETURN OR DESTRUCTION

Upon request or termination, the receiving Party shall promptly return or destroy all Confidential Information and certify destruction in writing upon request.

6. REMEDIES

Breach may cause irreparable harm. The non-breaching Party is entitled to equitable relief including injunction and specific performance, in addition to all remedies at law or in equity.

7. GOVERNING LAW

Governed by the laws of Pennsylvania. Disputes resolved by binding AAA arbitration in Pennsylvania.

8. GENERAL PROVISIONS

This Agreement is the entire agreement on its subject matter. Amendments require written signatures of both Parties. Neither Party may assign without prior written consent.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

Colossus

Nexus

Signature: _____

Name: Chibueze Nwosu

Title: Chief Revenue Officer

Date: _____

Signature: _____

Name: Jae-Won Kim

Title: Chief Risk Officer

Date: _____